



File No.: EXP202401420

RESOLUTION OF RIGHTS PROCEDURE

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: A.A.A. (hereinafter, the claimant), on February 19, 2023, sent a letter via certified postal mail to ARLANTHIBAUD, S.L. (hereinafter, the respondent) indicating that they had formalized a contract with that entity for dental treatment, and that the dental clinic closed, leaving the treatment unfinished, and requesting various information as well as the complete medical history, identification of the doctors and other professionals who have intervened, and all medical tests performed.

SECOND: On June 19, 2023, a complaint was received by this Agency against ARLANTHIBAUD, S.L. for not having duly attended to their right of access to their medical history.

THIRD: In accordance with Article 65.4 of the LOPDGDD, this complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations. ARLANTHIBAUD, S.L. responded indicating that the Lanzarote clinic has been transferred along with its client portfolio to the entity KAYSERDENT, S.L.

FOURTH: After receiving that response, this Agency understood that the respondent is KAYSERDENT, S.L. Therefore, the corresponding rights procedure against that entity was initiated, PD/00234/2023. Additionally, the present rights procedure against ARLANTHIBAUD, S.L. was opened for not having duly attended to the right of access, forwarding the complaint to them to present any allegations they deemed appropriate. The respondent replied indicating, in summary, reiterating that the Lanzarote clinic has been transferred along with its client portfolio to the entity KAYSERDENT, S.L.

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I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Data Protection Agency is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints filed by a data subject and investigating, as appropriate, the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases

where they have designated a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of rights regulated in Articles 15 to 22 of the GDPR, which gives rise to the present procedure, it was forwarded to the respondent for analysis, to respond to this Agency within one month, and to prove that they had provided the claimant with the appropriate response.

The result of that forwarding did not allow for understanding the claims of the claimant to be satisfied. Consequently, on September 19, 2023, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint was admitted for processing. This admission determines the opening of the present procedure for failure to attend to a request for the exercise of rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, which states:

"When the procedure refers exclusively to the failure to attend to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27,

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2016, it will be initiated by an admission agreement for processing, which will be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure will be six months from the date on which the claimant was notified of the admission agreement for processing. Once this period has elapsed, the interested party may consider their claim accepted."

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of rectifying any infringement of the GDPR, including "ordering the data controller or processor to address requests for the exercise of the rights of the data subject under this Regulation.

III

Rights of individuals regarding personal data protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which will be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in case it does not intend to comply with such request. The burden of proof for compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Regarding the right of access to personal data, according to the provisions of Article 13 of the LOPDGDD, when the exercise of the right is...

If it refers to a large amount of data, the data controller may request the affected party to specify the "data or processing activities referred to in the request." The right will be deemed granted if the data controller provides remote access to the data, considering the request fulfilled (although the data subject may request information regarding the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a six-month period, unless there is a legitimate reason for doing so. On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the available information about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed will not adversely affect the rights and freedoms of others.

The right of access in relation to medical records is specifically regulated in Article 18 of Law 41/2002, of November 14, which is the basic regulatory law on Patient Autonomy and Rights and Obligations in the Field of Information and Clinical Documentation (hereinafter LAP), the literal text of which states:

"1. The patient has the right of access, subject to the reservations indicated in section 3 of this article, to the documentation of the medical record and to obtain a copy of the data contained therein.

Healthcare centers will regulate the procedure that guarantees the observance of these rights.

2. The patient's right of access to the medical record may also be exercised by duly accredited representation.

3. The patient's right of access to the documentation of the medical record cannot be exercised to the detriment of the right of third parties to the confidentiality of the data contained therein collected in the therapeutic interest of the patient, nor to the detriment of the right of the professionals involved in its preparation, who may oppose the right of access based on the confidentiality of their subjective notes.

4. Healthcare centers and individual practitioners will only provide access to the medical records of deceased patients to persons linked to them, for family reasons or otherwise, unless the deceased expressly prohibited it and this is evidenced. In any case, access by a third party to the medical record motivated by a risk to their health will be limited to the relevant data. Information affecting the privacy of the deceased or the subjective notes of the professionals, or that harms third parties, will not be provided."

In this regard, it is important to highlight Article 15 of the LPA, which outlines the minimum content of the medical record:

"1. The medical record will include the information deemed essential for the truthful and updated knowledge of the patient's health status. Every patient or user has the right to have a record, in writing or in the most appropriate technical support, of the information obtained in all their care processes, carried out by the health service both in the primary care and specialized care settings.

2. The main purpose of the medical record will be to facilitate healthcare, documenting all those data that, in the medical judgment, allow for the truthful and updated knowledge of the health status.

The minimum content of the medical record will be as follows:

- a) Documentation related to the clinical-statistical sheet.
- b) Admission authorization.
- c) Emergency report.

- d) Anamnesis and physical examination.
- e) Evolution.
- f) Medical orders.
- g) Consultation sheet.
- h) Reports of complementary examinations.
- i) Informed consent.
- j) Anesthesia report.
- k) Operating room or delivery record.
- l) Pathological anatomy report.
- m) Nursing care evolution and planning.
- n) Therapeutic nursing application.
- ñ) Vital signs chart.
- o) Clinical discharge report.

Paragraphs b), c), i), j), k), l), n), and o) will only be required in the completion of the medical record when it concerns hospitalization processes or as otherwise provided.

3. The completion of the medical record, in aspects related to direct patient care, will be the responsibility of the professionals involved in it.

4. The medical record will be maintained with criteria of unity and integration, in each healthcare institution at a minimum, to facilitate the best and most timely knowledge by the professionals of the data of a particular patient in each care process."

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Regarding the preservation of medical records, Article 17 of the LPA, in its points 1 and 5, states that:

"1. Healthcare centers have the obligation to preserve clinical documentation under conditions that guarantee its proper maintenance and security, although not necessarily in the original format, for the adequate assistance to the patient for the appropriate duration in each case and, at a minimum, for five years from the date of discharge from each healthcare process (...)

5. Healthcare professionals who carry out their activity individually are responsible for the management and custody of the healthcare documentation they generate."

V

Conclusion

The rights procedure is initiated as a consequence of the denial of any of the rights regulated in data protection legislation. Therefore, in this case, only the facts related to the exercise of the right of access to the medical record will be analyzed, excluding other issues.

In this case, and taking into account the provisions of the first paragraph of this Legal Basis, from the examination of the documentation provided, it has been established that the claimant requested access to their medical record.

During the processing of this procedure, the entity being claimed has responded to this Agency, but does not demonstrate having attended to or denied the request made by the claimant in a reasoned manner, sending the required response to their request.

Thus, it cannot be accepted that the response that should be given can be expressed merely as part of an administrative procedure, such as the submission of allegations regarding the present procedure, which was initiated precisely for not properly addressing the request in question.

The aforementioned regulations do not allow for the request to be overlooked as if it had not been made, leaving it without the response that those responsible must issue, even in the event that there are no data in the files or even in those cases where it does not meet the required criteria, in which case the recipient of such a request is also obliged to require the correction of the observed deficiencies or, if applicable, to deny the request in a reasoned manner indicating the reasons why the right in question cannot be considered.

Therefore, the request made obliges the responsible party to provide an express response in all cases, using any means that justifies the receipt of the response.

Since a copy of the necessary communication that must be directed to the claimant informing them about the decision made regarding the request for the exercise of rights is not attached, it is appropriate to uphold the claim that originated this procedure.

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Lastly, it should be noted that this Agency is not competent to resolve civil matters, such as those related to the civil or commercial validity of the contract, the accuracy of the debt amount, the proper provision of contracted services, or the interpretation of contractual clauses, as its competence is limited to determining whether the legal and regulatory requirements established for data processing have been met, without conducting inquiries typical of the civil sphere. The determination of the legitimacy of a debt based on an interpretation of the contract signed between the parties and its correct amount must be pursued before the competent administrative or judicial bodies, as it exceeds the jurisdiction of this Agency.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ACCEPT the complaint filed by A.A.A. considering that the provisions of Article 15 of the GDPR have been infringed and to urge ARLANTHIBAUD, S.L. with NIF B76075084, to send to the complaining party, within ten working days following the notification of this resolution, a certification addressing the requested right or a reasoned denial indicating the reasons why the request cannot be fulfilled, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period.

Non-compliance with this resolution may result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to A.A.A. and ARLANTHIBAUD, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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